

PDF file name: Project_muse_2014-The Case for Moderate Gun Control

Original article word count: 8221

Extracted content word count: 2119 (25% of the original word count)

Title of the article: *The Case for Moderate Gun Control*

The content extracted is as follows:

Whether any new gun control measures will become federal law is uncertain, however; the US Senate recently failed to muster enough support to bring a bill mandating universal background checks to a vote.

What is the shape of appropriate gun control in this country?

Although I believe that the case for a moral right to bear arms is quite debatable, in this article I simply grant its existence alongside the legal right.⁴ I do so because most Americans believe in gun rights (CNN/Opinion Research Corporation 2008, 2009; Pew Research Center 2010; ABC News/Washington Post 2011), because the legal right has been asserted by the Supreme Court, and because it is important to consider what sorts of gun control are justifiable against this background of established law and broad public conviction.

My thesis is that, assuming there is a right to bear arms, the most defensible policy approach in the United States would feature moderate gun control.⁵ The discussion proceeds as follows.

The first section summarizes the American gun control status quo and identifies several measures I will have in mind in defending what I call moderate gun control. The next section states and rebuts five leading arguments against gun control.

The section that follows presents a positive case for gun control that emphasizes safety in the home and society as well as rights whose enforcement entails some limits or qualifications on the right to bear arms.

I will defend considerably more gun control than currently exists.

The term gun control, as I understand it, refers to laws and policies designed to restrict the manufacture, sale, purchase, possession, storage, transfer, or use of firearms and/or associated ammunition.

For convenience, I will consider various gun control measures, defined in this way, along with related political measures.

Although it will clearly stretch the meaning of gun control to include (6) and (7) under the rubric of this term, for the purposes of this paper it will be convenient to do so.

I characterize these proposed regulations considered together on top of existing regulations as moderate gun control.

What, then, would count as extensive gun control?

Short of that, extensive gun control might include in addition to measures collectively deemed moderate severe limits on the number of guns one may purchase and own and/or a mandatory buy-back of previously purchased assault weapons.

Naturally, such terms as moderate gun control and extensive gun control have no settled, precise meaning.

This should help to establish these measures as reasonable suggestions within the spirit of moderate gun control.

Why defend moderate rather than extensive gun control?

Given the background assumption of a right to gun ownership, extensive gun control is considerably harder to defend.

At the same time, I do not preclude extensive gun control as the best approach.¹¹ What this paper defends is (at least) moderate gun control.

Arguments against gun control are sometimes unclear regarding the extent of

regulation they oppose.

It will be helpful, therefore, to reconstruct existing arguments the leading arguments against gun control of which I am aware such that they oppose moderate gun control as I have characterized it.

Moderate gun control violates the Second Amendment of the American Constitution: A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed. This statement establishes the right of private citizens to own firearms, notwithstanding the distracting phrase about a militia.

As the Supreme Court clarified in its landmark Heller case,¹² the right to bear arms does not preclude significant gun controls.

While the present rebuttal helps to show that the Second Amendment is compatible with certain gun regulations, it does not show that every measure I include under moderate gun control is constitutional.

Introducing moderate gun regulations would place us on a slippery slope leading to a government ban on private gun ownership.

Since moderate gun control measures would constitute such a step, they should be rejected. In rebutting this argument, we can grant the assumption that banning guns would be unacceptable because we assume the existence of a right to gun ownership.

The problem with the slippery slope argument is its claim that the introduction of moderate gun control measures would likely lead to a ban on guns.

Many countries allow gun ownership with gun control far more restrictive than our own, and it is hardly the case that they are also marching inexorably toward gun bans.

Indeed, some of these countries such as Canada, Australia, and several in Western Europe have policies that amount to what we have termed extensive gun control (see, e.g., Vernick, Hodge, and Webster 2007).

In view of this decision by the highest court, it is completely implausible that there could be a gun ban in this country even if we enacted moderate gun control: such a ban would be considered straightforwardly unconstitutional.

Although slippery-slope arguments against gun control are a favorite political tactic of the National Rifle Association (NRA), they simply are not credible.

Any readers who are nevertheless inclined to take slippery-slope arguments seriously may be reassured by the explicit pairing, in the final section, of specific gun controls with particular purposes.

The clear acceptability of those purposes enables us to be confident that they justify only certain types of gun control, not a ban, and that there is no reason to assume that the regulations true motivation is to move toward one.

The right to bear arms is a basic (or fundamental) moral right that would be violated by moderate gun control.

Such moderate restrictions as requiring a safety course constitute excessive interference with the exercise of this right.

This reasoning errs both in asserting that the right to gun ownership is a basic moral right and, more importantly, in asserting that this right is violated by moderate regulations.

In the United States today, moderate gun control would threaten effective self-defense (cf. Wheeler 1997 and Huemer 2003).¹⁴ The moral right to gun ownership receives its strongest support from a broader right to self-defense.

Moderate gun control measures would substantially diminish people's ability to deploy guns in self-defense and are, for this reason, unacceptable.

But the argument stumbles in asserting that effective self-defense would (necessarily or even presumably) be undermined by moderate gun control.

Moderate gun control is unacceptable because it would violate our right to liberty.

First, by limiting the weapons one may use and the circumstances under which one

may obtain them, moderate gun control would violate one's liberty to defend oneself as one sees fit.

Second, by imposing these limitations, moderate gun control would violate one's liberty to recreate as one wants.

Third, with the sorts of interferences just described, moderate gun control would violate one's liberty to adopt a particular lifestyle.¹⁶ Although this argument may resonate with many NRA members, it is significantly wrong-headed and provides no good reason to oppose moderate gun control.

The argument asserts that gun control would violate a right to defend oneself as one sees fit.

For this reason, gun controls that are reasonably (but not excessively) responsive to these risks do not violate one's right to self-defense or one's moral prerogative to do so as one wishes, because the limits of that right and prerogative are appropriately set by reasonable considerations of safety.

I will argue that moderate gun controls are justified in exactly this way.

Consider now the assertion that moderate gun control would violate one's liberty right to recreate as one wants.

The first point to notice is that moderate gun control as envisioned in this paper will pose no significant obstacle to hunting.

Thus, this liberty right, properly understood, is compatible with moderate gun control.¹⁷ Having rebutted leading objections to moderate gun control, we turn now to a positive case for this approach to gun policy.

The Consequentialist Argument

The consequentialist component of the case for moderate gun control (which will be followed by a rights-based component) focuses on the dangerousness of guns.

This focus, to be sure, could support an argument for extensive gun control, even a ban on firearms or some large category of firearms such as handguns.

Given that starting point, the case for (at least) moderate gun control will appeal to guns' dangerousness and to the possibility of mitigating the relevant dangers in justifying particular gun control measures.

The consequentialist argument begins with a thesis that addresses society's interest in household safety while turning the most powerful argument for gun ownership rights into an argument for gun control.

The thesis is that, in the United States today (in which gun control is minimal), the presence of one or more guns in a house makes household members on average less safe than they would be in a gun-free household.

Thus, available evidence strongly supports the thesis that owning guns for the purpose of self-defense at least in the United States today (in which gun control is minimal) tends to be self-defeating: household members, on average, face a greater chance of suffering a violent death if the house contains one or more guns than if the house is free of firearms.

While the first thesis in the consequentialist argument for moderate gun control concerns safety in the home, the second concerns safety in the broader society.

Another study, comparing state firearm levels and controlling for poverty, urbanization, and region, found that children and adults, men and women, and members of all racial groups are significantly more likely to die from unintentional gun deaths if they live in states with higher levels of gun ownership (Miller, Azrael, and Hemenway 2001).

John Lott, a prominent opponent of gun control, dismisses international comparisons, stating that it is difficult to obtain gun ownership data both over time and across countries, and to control for all the other differences across the legal systems and cultures across countries (2010, 116).

Lott is right about the methodological challenges posed by international comparisons, but to disregard international data seems irresponsible (as well as convenient for one who opposes gun control).

This fact recommends moderate gun control in the interest of promoting public safety.

First, if we think of gun control (as opposed to a gun ban) as not affecting the quantity of guns in a society, we may reasonably judge that we should make these dangerous weapons less dangerous through appropriate gun regulations.

Alternatively, if we think of gun control as affecting the quantity of guns for example, by restricting who can purchase guns and instituting universal background checks we may reasonably judge that reducing gun ownership rates is a way of decreasing the harm likely to be caused by these weapons.

Thus, society's interests in both household safety and public safety serve as the basis for a commonsensical, consequentialist argument in favor of moderate gun regulations that are designed to promote safety without violating, or unduly restricting, the right to bear arms.

The Rights-based Argument

Careful reflection on our moral rights strengthens the case for moderate gun control.

This is very important because some gun advocates believe that duly accounting for gun rights defeats the case for gun control by trumping consequentialist arguments in its favor.

But this same basic right also supports moderate gun control.

The argument so far has discussed moderate gun control as part of what is necessary to protect people's rights not to be assaulted, etc. In the case of children, another right comes into play: their right not to die or be seriously injured as a result of gross negligence.

By the same token, the latter rights would not be duly respected if we interpreted gun rights so capaciously as to preclude gun control measures that are reasonably related to household safety.

So far we have been discussing the rights of household members as a basis for moderate gun control.

Responsible efforts to enforce this right include efforts aimed at public safety in the form of moderate gun regulations.

It is paramount to appreciate that the rights-based argument is not a redundant overlay to the consequentialist argument for moderate gun control, even if both arguments are tightly connected with considerations of safety.

These limits are characterized by moderate gun control.

What remains is to show that the particular regulations I recommend are justified in a way that is responsive to the case for moderate gun control presented in this section.

Let us consider the measures enumerated earlier as characterizing moderate gun control.

This will not only complete the case for moderate gun control.

This completes a brief sketch of specific measures that I recommend in the name of moderate gun control.

This essay has underscored the compatibility of gun rights and moderate gun control.

The time has arrived for moderate gun control in the United States.